

Hitendra S/O. Vinayakrao Upadhyay vs The State Of Maharashtra And Anr on 3 February, 2020

Bench: T.V. Nalawade, M.G. Sewlikar

Cri.W.P.no.94/2020

1

IN THE HIGH COURT AT BOMBAY
APPELLATE SIDE, BENCH AT AURANGABAD

9 CRIMINAL WRIT PETITION NO.94 OF 2020

HITENDRA S/O. VINAYAKRAO UPADHYAY
VERSUS
THE STATE OF MAHARASHTRA AND ANR

...
Advocate for Petitioner : Mr. R.K. Ashtekar
APP for Respondent/State : Mr. K.S. Patil
...

CORAM : T.V. NALAWADE AND
M.G. SEWLIKAR, JJ.
DATED : 03/02/2020.

ORDER :

1. The petition is filed for relief of giving direction to the learned J.M.F.C., Parbhani for expeditious disposal of proceeding bearing SCC No. 930/2017. Notice is given only to the State and this Court held that there is no need to give notice to respondent No. 2 as no prejudice will be caused to respondent No. 2, accused in that proceeding if direction of early disposal of the matter is given.

2. The submissions made show that check bouncing case is filed in the year 2017 and evidence on affidavit is given in January 2018. It appears that application was moved by the accused for impounding of document like agreement, but that application is rejected by the J.M.F.C. Revision is filed by the accused in Sessions Court, but no stay is granted by the Sessions Court in respect of the order made by the J.M.F.C. In view of the requirements which are given in section 138 of Negotiable Instruments Act and aforesaid circumstances, this Court holds that there is no need to J.M.F.C. to wait for the decision of criminal revision. So, the petition is allowed. Direction is hereby given to expeditiously disposed of the proceeding and in any case, within six months from the date of receipt of this order.

Authenticated copy allowed.

[M.G. SEWLIKAR, J.]

[T.V. NALAWADE, J.]

ssc/